



Harry Kimpton

Capital Transactions Analyst, Assistant Development & Asset Manager
Markham

Level 9 Challis House, Martin Place Sydney NSW 2000

c/- h.kimpton@markham.com.au

10 March 2022

King Street Wharf (KSW) Promenade and Public Domain Works - Project Management Services

Harry,

Thank you for the opportunity to provide a proposal for the project management services role to Markham Real Estate Partners (KSW) Pty Ltd ATF the M8 Property Trust (Markham) for the KSW Promenade and Public Domain Works (the Project).

Understanding of the Project Scope

We have reviewed the Statement of Environmental Effects (SEE) prepared by Ethos Urban and the Tranche 1 and Tranche 2 submissions to the City of Sydney in support of their consideration of the proposal. Our review has particularly considered the staging outlined in the SEE as derived from the Mainbrace Construction Management Plan.

Our proposal relates to the scope of works defined in the SEE as:

- Stage 1 - Awning, Retail Edge, Business Identification Signage and Lighting
- Stage 2 - Lime Street Entrances and Business Identification Signage
- Stage 3 - Lime Street Landscaping.

This proposal excludes the following in the time frame of works to be expedited before the increased Spring 2022 trading:

- Stage 4 - Repaving of Promenade (including outdoor seating areas), Landscaping, Public Furniture and Wharf Signage
- Stage 5 - Wayfinding Signage
- Stage 6 - Pocket Parks.

Sydney

Level 1, 109 Pitt Street
Sydney NSW 2000
GPO Box 4901
Sydney NSW 2001

Phone +61 2 9236 5000

enquiries@sjacom.au

www.sjacom.au



SJA CONSTRUCTION SERVICES PTY LTD
ABN 34 090 890 850

Stage 1 is the most complex stage to managed as it is defined by the procurement, shop drawing and de-construction / re-construction of the significant glass awning structures incorporated in the western façade structure that informs the architectural feature of KSW.

Additional to the completion of the fully documented design, the management of the Builder, the critical steel and glazing trades, their shop drawing, fabrication, logistics of delivery, and installation form the critical path of the Project.

The Stage 2 and Stage 3 works on Lime Street are relatively straight forward and remote to the complex work fronts within Stage 1.

Procurement and Contracting Basis

We understand that, absent receipt of the City of Sydney (CoS) consent as yet, that Markham will progress a Construction Management procurement reflecting open book trade pricing with trade pricing risk held by Markham post contract until trades are let as sub-contracts.

That is, a Construction Manager would be procured on the basis of tendering their preliminaries, overhead and margin on a lump sum basis relative to a Principal's Project Requirements (PPR) which would include a forecast consent responsibility matrix and a detailed order of works / staging plan that addresses shut down periods with tenancies as negotiated by Markham.

A preferred tenderer could be engaged in final negotiation should the CoS consent be timely (April 22) or be appointed in advance of such consent (May 22) on the basis of good faith commercial negotiation relative to the forecast consent responsibility matrix and any related changes to the PPR.

Once engaged the Construction Manager would advance their planning and procurement, focusing initially on the lead time procurements of structural steelwork and glazing to suit the Stage 1 critical path. All trade letting would be converted to sub-contracts, perhaps excepting business identification signage if Markham choose to hold this trade contract.

The Project Manager would assist Markham's legal counsel in the development of the contract form and then administer this Construction Management Agreement.

The Quantity Surveyor engaged by Markham for cost planning pre contract, including the preparation of a pre tender estimate (PTE), should be retained to support the evaluation of post contract trade pricing

Sydney

Level 1, 109 Pitt Street
Sydney NSW 2000
GPO Box 4901
Sydney NSW 2001

Phone +61 2 9236 5000

enquiries@sja.com.au
www.sja.com.au



reviews with reference to the PTE. This post contract cost management role should continue in support of the contract administration functions of the Project Manager.

Design Basis

We anticipate some transfer of errors and omissions design risk given the elevated detailing of this (Stage 1) scope but otherwise limited design risk on the Construction Manager requiring elevated 'fully documented' deliverables by Markham's design consultants.

Additional to the current consultant team, the Principal's design would require a Structural Engineer, a Façade Consultant (for the glazing specification and related elements) and a Hydraulic Engineer to resolve the drainage of the awning structures and the interface with the civil design.

A fuller design risk transfer is unlikely to yield a competitive tender process in the current market and the time to procure the Construction Manager is best used by the Principal to advance the design to a high level of design and documentation resolution, notwithstanding design requirements arising the CoS consent may not be fully known and may need to be modified late in the procurement, or post contract.

To the extent the design is not complete, there may be merit in permitting the Construction Manager to directly procure the design services of PMDL, Aspect Studios, FPOV and Enspire Solutions, in addition to any Structural Engineer, Façade Consultant and Hydraulic Consultant that Markham may procure in concluding the Stage 1 tender design.

On this generous risk allocation basis, Markham should reasonably anticipate collaborative conduct of these design consultants through any post contract design.

While works for Stages 4,5 and 6 are proposed for Winter 2023, the design must consider servicing requirements of this scope to the extent they impact on the scope of works in Stages 1,2 and 3 to avoid repeated works and impact on tenancies in 2023 that could otherwise have been avoided.

Sydney

Level 1, 109 Pitt Street
Sydney NSW 2000
GPO Box 4901
Sydney NSW 2001

Phone +61 2 9236 5000

enquiries@sja.com.au

www.sja.com.au



Proposed Scope of Services

We provide a brief summary of our scope of services below.

DA Assessment and Consent

SJA will work with the Markham team and Ethos Urban (and other consultants) to work up a forecast consent matrix for the purposes of tendering and subsequently support any commercial negotiation arising a consent that differs to the forecast consent.

We do not propose to interface with Council prior to gaining the consent nor support current RFI processes and ongoing queries from Council which will be managed by the Markham Development Manager.

Stage 1 Tender Documents

SJA will work with the Markham-appointed team to progress the design progression to a tender-ready set noting the risk profile anticipates a close to 'fully documented' tender set.

If not already appointed, we would seek to procure a Structural Engineer (Robert Bird), a Façade Consultant to support detailing of the awning, and a Hydraulic Consultant to review the management of stormwater on the awning to the civil drainage interface.

We would expect that PDML would act as the design manager for the purposes of design coordination, if not as a principal design consultant.

Prepare PPR / Staging/ Tender Documents

SJA would prepare the PPR and tender documents in consideration of the design documents (by Others) and the contract documents (by Others). This will consider the staging to suit tenant negotiations and / or as documented in any forecast consent matrix with respect to staging.

The staging feedback from Council with respect to that staging defined in the SEE is a critical aspect of the Construction Manager's procurement and the overall duration of the works noting Markham desire to conduct the works prior to peak Spring trading.

Site Investigations

We anticipate a body of site investigations are required to support design completion, definition of site risks and to resolve construction methodologies. We would expect in this current accelerated design period that there are a range of site investigations to be procured and managed which we would support, in addition to further investigations we consider useful for tendering purposes to assist with tenderer's

Sydney

Level 1, 109 Pitt Street
Sydney NSW 2000
GPO Box 4901
Sydney NSW 2001

Phone +61 2 9236 5000

enquiries@sja.com.au
www.sja.com.au



understanding of site condition risk.

Procurement of a Construction Manager

We will manage the procurement of a Construction Manager from a shortlist of 3 to 4 tenderers on the basis of a lump sum fixed fee for Preliminaries, Overheads and Margin to be fixed for the project.

The removal of trade commercial pricing risk is a key strategy to make this an attractive procurement in an otherwise very busy construction market.

We will manage the tender process, the subsequent tender evaluation process including management of tender clarifications and supporting Markham with final negotiations to get to contract execution. A key aspect of this is the clear documentation of Preliminaries such that there is no duplication in trade Preliminaries relieving the Construction Manager of these obligations.

City of Sydney Consent Negotiation with Construction Manager

The timing of this consent is unknown and may be pre-contract (April 22) or post contract (May 22 or beyond). Gaining this consent after May significantly compromises the ability to deliver the Stage 1,2 and 3 works before Spring trading accelerates.

Having prepared a forecast consent matrix as part of our PPR process, we will support Markham in any commercial negotiation where consent conditions materially depart the forecast consent matrix used in the tender process.

Trade Procurement

Once appointed, the Construction Manager will manage the critical trades procurement – structural steel and glazing in Stage 1 – and we will support the review of outbound and returned trade tenders. The awning construction will require elevated attendance to the staging and sequencing of the works given the interface with (i) basis of Construction Manager's fee; (ii) tenant expectations and (iii) staging requirements of the CoS consent.

The lead time on structural steel and glazing may well force the overall duration of the Stage 1 project which is most efficiently done as a coordinated body of work to the West of all 8 buildings in the winter months of 2022.

We would similarly review the outbound and returned trade tenders for the less critical trades, working with the Markham Quantity Surveyor.

Sydney

Level 1, 109 Pitt Street
Sydney NSW 2000
GPO Box 4901
Sydney NSW 2001

Phone +61 2 9236 5000

enquiries@sja.com.au

www.sja.com.au





Contract Administration

We will administer the Construction Management Agreement as Principal's Representative for Stage 1, 2 and 3. While the contract administration functions remain consistent between stages, we anticipate Stage 1 will consume much of our resource to manage the critical path, tenant interface and WHS risks of the works.

Defects Liability Period

We anticipate a level of post completion attendance to oversee the Construction Manager's completion of minor defects and related matters.

SJA provides services additional to our Project Management services including Planning & Programming services, and commercial Advisory services including Quantity Surveying. While excluded from our fee proposal, we welcome any request to broaden the scope of services to bring in these specialist practitioners.

Sydney

Level 1, 109 Pitt Street
Sydney NSW 2000
GPO Box 4901
Sydney NSW 2001

Phone +61 2 9236 5000

enquiries@sja.com.au
www.sja.com.au



SJA CONSTRUCTION SERVICES PTY LTD
ABN 34 090 890 850

Indicative Program

We understand that Markham seek to conduct these works prior to the acceleration of Spring trading for the tenancies at KSW. We provide an indicative program below, should all tenancies be prepared to accept concurrent closures, and the CoS permit such a total concurrent construction frontage along the KSW.

	Mar-22	Apr-22	May-22	Jun-22	Jul-22	Aug-22	Sep-22	DLP
	1	2	3	4	5	6	7	8
DA Assessment & Consent								
PM Mobilisation	50%							
Stage 1 Tender Docs (PMDL Led)	50%		50%					
Prepare PPR/ Staging / Tender Docs / Shortlist	50%							
Site Investigations	50%							
Tender / Eval and Builder Award (Prelims OH and Margin)								
City of Sydney Consent / Contract Negn								
Critical Trade Procurement (Builder)								
Steel / Glazing Lead Time								
Non Critical Trade Procurement (Builder)								
Stage 1 - Awning, Retail Edge, Tenancy Signage / Lighting								
Stage 2 - Lime Street Entrances and Tenancy Signage								
Stage 3 - Lime Street Landscaping								



SJA Resourcing

We propose a balanced and leveraged team as set out below deliver this fast-track project.

Ben Mackey – Ben would be the Project Director overseeing the Project, including the Construction Manager procurement, interface with Markham legal counsel and oversight of the contract administration of the Construction Manager.

Ben Clifton – Ben would be the day to day project lead, and lead all facets of the Project, including interface with the design consultants (pre contract), but for those specific roles where Ben Mackey leads functions as set out over.

Zawad Hossein – Zawad will provide day to day support to Ben Clifton across all facets of the Project and would have elevated site attendance to assist stakeholder communication during the works.

We provide CVs of the nominated staff at *Enclosure A*.

Commercial Considerations

We bid back the Indicative Program on the prior page in consideration of the resources required for this accelerated project. We provide a resource schedule at *Enclosure B* to this proposal to assist your understanding of our resourcing.

Our resourcing profile to this Indicative Program indicates a fee proposal of **\$154,000 ex GST** for the scope of Stage 1, 2 and 3 to be completed by September 2022. Should the program vary materially to the Indicative Program, we reserve the right to vary our commercial proposal.

We advise our FY 23 hourly rates for the purposes of change control as follows:

Resource	Hourly Rates ex GST
Ben Mackey	\$250
Ben Clifton	\$190
Zawad Hossein	\$160

We do not anticipate any disbursements presuming we are not required to attend inspections outside of the KSW site.

Sydney

Level 1, 109 Pitt Street
Sydney NSW 2000
GPO Box 4901
Sydney NSW 2001

Phone +61 2 9236 5000

enquiries@sja.com.au
www.sja.com.au



SJA CONSTRUCTION SERVICES PTY LTD
ABN 34 090 890 850



Basis of Engagement

We propose to find mutually agreeable terms for our engagement for these project management services noting the following key requirements to any resultant engagement:

- Payment Terms to be 28 days from monthly invoice;
- Limitation of Liability – except to the extent that liability cannot be limited or excluded by the operation of law, the liability of SJA (including its directors, officers and employees) to Markham for all loss, damage, cost or expenses, whether arising under or in connection with the provision of services or the agreement entered into in relation to the provision of services, or any acts or conduct not authorised and whether by way of indemnity or warranty, by statute, in tort (for negligence or otherwise), in restitution or on any other basis in law or equity is hereby limited to 50% of the total amounts paid to SJA in cleared funds in relation to the performance of the services under the relevant agreement.
- Consequential Loss – SJA will have no liability to Markham for any loss of use, date, production, profit, revenue, business or anticipated saving, damage to goodwill, reputation or share price, loss of customer, or contract, financing costs or increase in costs or any special, indirect or consequential loss or damage of any nature.

Absent any alternate agreement, we provide our standard SJA Consultancy Agreement at *Enclosure C*.

We welcome the opportunity to discuss this proposal further to align with your requirements and look forward to earliest commencement.

Regards

Ben Mackey

General Manager

SJA Construction Services

Sydney

Level 1, 109 Pitt Street
Sydney NSW 2000
GPO Box 4901
Sydney NSW 2001

Phone +61 2 9236 5000

enquiries@sja.com.au
www.sja.com.au



SJA CONSTRUCTION SERVICES PTY LTD
ABN 34 090 890 850



Encl A – CVs

Encl B – Resource Schedule

Encl C – SJA Consultancy Agreement

Sydney

Level 1, 109 Pitt Street
Sydney NSW 2000
GPO Box 4901
Sydney NSW 2001

Phone +61 2 9236 5000

enquiries@sja.com.au

www.sja.com.au



SJA CONSTRUCTION SERVICES PTY LTD
ABN 34 090 890 850

Ben Clifton



Ben Clifton

Senior Project Manager

Sydney Office

Phone +61 2 9236 5000

enquiries@sja.com.au

Level 1, 109 Pitt Street
Sydney NSW 2000

GPO Box 4901
Sydney NSW 2001

www.sja.com.au

Sydney
Melbourne
Brisbane
Perth
Auckland
London
Hong Kong

An accomplished project management professional with 15+ years' of demonstrated success delivering large scale commercial, residential and hotel projects. Former experience in tier one head contracting and more recently leading client-side roles across all facets of the development cycle

Career highlights include the Australian Government's Sirius Offices redevelopment with a construction value of \$145 million and Doma's Hotel Realm valued at \$60 million. Recent experience delivering several residential, aged care and education facilities has consolidated the skills required to manage risks through the early phases of developments, setting projects up for success.

Experience

- ▶ 2018 - present
Senior Project Manager, SJA
Holiday Inn Express Parramatta, 239 Bed Hotel - \$60m
TAFE Miller College new build \$7.7m
- ▶ 2015-2018
Senior Consultant, Foresight Management
Warrawee Grand, 14 Luxury Townhouses - \$11m
Mosaic Apartments, Bankstown - 33 Apartments - \$9m
Spectra Apartments, Liverpool - 39 Apartments - \$11m
- ▶ 2014-2015
Consultant, Turner Townsend Thinc
Wontama Aged Care, Orange - 72 Place RACF, \$22m
The Carl, Carlingford - 140 Apartments, \$43m
- ▶ 2005-2011
Project Manager, Bloc Constructions
Government Sirius Offices, Canberra - 45,000sqm, \$145m
Realm Quarters, Canberra - 79 Apartments, \$30m
Hotel Realm, Canberra - 158 Suites, \$60m
- ▶ 2001-2003
Trainee Structural Engineer, London Borough of Richmond upon Thames
- ▶ 1999-2001
Foreman, Nace Civil Engineering



Specialisations

Ben is an accomplished Project Manager with specialisations in the following areas:

- ▶ Brief development and design management
- ▶ Development approvals and authority negotiation
- ▶ D&C tender formation and contract administration
- ▶ Enabling works and project mobilisation strategy
- ▶ Property titling and subdivision approvals
- ▶ Project risk management contractual claims assessment
- ▶ Value engineering and cost management

Industry Sectors

Ben has managed and/or has assisted with the delivery of major Construction projects in the following sectors:

- ▶ Commercial Office
- ▶ Residential
- ▶ Educational
- ▶ Hotel

Qualifications

Bachelor of Civil Engineering, University of New South Wales

Master of Construction Management, Deakin University

GC21 (Edition 2) General Conditions of Contract on Construction Contracts

Section J transformed: Stepping into Energy Change for Commercial Buildings

Ben Mackey



Ben Mackey
General Manager

Sydney Office

Phone +61 2 9236 5000

enquiries@sja.com.au

Level 1, 109 Pitt Street
Sydney NSW 2000

GPO Box 4901
Sydney NSW 2001

www.sja.com.au

Ben is an accomplished construction professional with background in the engineering design of civil and building structures before a project management career across a range of property and construction sectors.

He has strong experience in public and private sector projects working nationally and internationally. He has led multiple business geographies in an executive role and acted as a responsible Director and service assurance manager for all project management commissions within these business units.

Experience

- ▶ 2017 - present
General Manager, SJA
- ▶ 2002 - 2017
NSW Regional Manager, Thinc Projects
Executive Director, Thinc Group Holdings
ACT Regional Manager, Thinc Projects
Queensland Senior Consultant, Thinc Projects
- ▶ 1998 - 2002
Civil / Structural Engineer, Connell Wagner - Perth, Adelaide and Brisbane
- ▶ 1996-1998
Civil / Structural Engineer, Mott MacDonald, London

Specialisations

Ben is an accomplished project director and manager with specialisation in the following areas:

- ▶ Project planning, briefing and inception
- ▶ Project establishment and governance support
- ▶ Procurement planning and execution
- ▶ Consultant commercial administration
- ▶ User consultation and design process management
- ▶ Management of planning pathway and utility authorities
- ▶ Contractor procurement and negotiation
- ▶ Project systems and reporting assurance

Sydney
Melbourne
Brisbane
Perth
Auckland
London
Hong Kong



- ▶ Construction contract superintendence and administration
- ▶ Project risk assurance
- ▶ Experience in low acuity healthcare projects.

Industry Sectors

Ben has directly managed or acted in an oversight role for projects in the following sectors:

- ▶ Health Facilities
- ▶ Defence Facilities
- ▶ Aged Care – RACFs and ILUs
- ▶ Social and Affordable Housing
- ▶ Residential
- ▶ Retail and Mixed Use
- ▶ Hotel and Tourism
- ▶ Education and Training

Qualifications

Bachelor of Engineering Hons., University of Western Australia

Bachelor of Commerce, University of Western Australia

Zawad Hossain



Highly motivated Construction professional with five years of construction experience including development management, construction site coordination, estimating, contracts administration and project management.

Experience

Zawad Hossain
Project Manager

Sydney Office

Phone +61 2 9236 5000
enquiries@sja.com.au
Level 1, 109 Pitt Street
Sydney NSW 2000
GPO Box 4901
Sydney NSW 2001
www.sja.com.au

Sydney
Melbourne
Brisbane
Perth
Auckland
London
Hong Kong

▶ February 2022 - Present
Project Manager, SJA

▶ August 2019 – Feb 2022
Estimator/ Construction Coordinator, Ivison Constructions

As an Estimator & Construction Coordinator for Ivison Constructions, he has been an active member of the project team which has undertaken high end residential construction ranging from \$2 million - \$18 million. His duties in this role included:

- Managing the tender process, developing tender strategies and risk management;
- Taking a lead role in tendering and cost planning for a variety of projects;
- Reviewing requests for tenders, design drawings, and contractual documentation;
- Produce detailed take-offs, project programs, and cost plans;
- Stakeholder engagement including liaising with clients, suppliers, subcontractors, and design consultants;
- Participation in tender reviews;
- Preparation and drafting of tender proposals including clearly setting out qualifications and departures;
- Participate in pre-contract negotiations;

▶ October 2016 – July 2019
Development & Construction Coordinator, Piety THP, Sydney

An active member of the company having worked in both the development management and construction teams assisting both the Development Manager and Project Managers in an array of tasks.

His direct responsibilities included:

Development Team

- Assisting with management of development and physical renewal initiatives from concept of feasibility through the development lifecycle.
- Appointment and co-ordination of design consultants and key stakeholders.
- Completing feasibility studies and prepare project budgets, cash flows and programs.
- Project Planning and approvals processes.
- Assisting with Project schedule development and reporting.

Construction Team

- Taking-off materials and quantities from drawings: identifying and preparing work packages scope of supply, delivery, commercial and quality requirements.
 - Selecting the best supplier based upon price, availability and quality and preparation of engagement documents.
 - Subcontractors management supporting the Site Manager.
 - Maintaining awareness of subcontractor OHS, Quality and industrial relations performance.
- ▶ May 2015 – September 2016
Customer Support Specialist, Digital Turbine Asia Pacific Sydney

Specialisations

Zawad has specialisations in the following areas:

- ▶ Construction Stakeholder Management
- ▶ Estimating
- ▶ Development Approval Process
- ▶ Progress Claims & Variation Assessments
- ▶ Tender Analysis
- ▶ Buildsoft Cubit
- ▶ Site Management
- ▶ Energy including Renewable Energy

Qualifications

- ▶ Bachelor of Construction Management & Property, University of New South Wales, Sydney

Fee Schedule

King Street Wharf Upgrades - Stage 1, 2 and 3

2022

	Mar-22	Apr-22	May-22	Jun-22	Jul-22	Aug-22	Sep-22	DLP
	1	2	3	4	5	6	7	8
DA Assessment & Consent								
PM Mobilisation	50%							
Stage 1 Tender Docs (PMDL Led)	50%		50%					
Prepare PPR/ Staging / Tender Docs / Shortlist	50%							
Site Investigations	50%							
Tender / Eval and Builder Award (Prelims OH and Margin								
City of Sydney Consent / Contract Negn								
Critical Trade Procurement (Builder)								
Steel / Glazing Lead Time								
Non Critical Trade Procurement (Builder)								
Stage 1 - Awning, Retail Edge, Tenancy Signage / Lighting								
Stage 2 - Lime Street Entrances and Tenancy Signage								
Stage 3 - Lime Street Landscaping								

Project Director	Time (%)	20%	20%	20%	10%	10%	10%	10%	10%	
Ben Mackey / Aaron Todd	Time (hrs)	35	35	35	17	17	17	17	17	190
Project Manager (Lead)	Time (%)	20%	20%	20%	20%	20%	20%	20%	20%	
Ben Clifton	Time (hrs)	35	35	35	35	35	35	35	35	277
Project Manager (Support)	Time (%)	10%	30%	30%	30%	30%	30%	30%	30%	
Zawad Hossein	Time (hrs)	17	52	52	52	52	52	52	52	381
FTE		0.50	0.70	0.70	0.60	0.60	0.60	0.60	0.60	
TOTAL HOURS / MONTH		87	121	121	104	104	104	104	104	848

SERVICES AGREEMENT

BETWEEN:

SJA Construction Services Pty Ltd

AND

[insert]

This Agreement made the [insert] day of [insert month] [insert year]

BETWEEN: SJA Construction Services Pty Ltd of Level 1, 109 Pitt Street, Sydney, NSW, ABN 34 090 890 850 "SJA"

AND: [insert] of [insert], ABN [insert] "the Client"

together, "the Parties".

The Parties agree as follows:

1. Definitions

"Agreement" means: this document, the Proposal including the Commission and includes all documents expressly referred to in Schedule 1.

"Business Day" means: a day that is not a Saturday, Sunday or public holiday in the jurisdiction identified in clause 45.

"Client Representative" means: the person nominated in Schedule 1 and as amended by the Client in writing from time to time.

"Commencement Date" means: the date specified in Schedule 1 upon which the Services will commence.

"Commission" means: the specific project to which the Services relate as detailed in the Proposal.

"Completion Date" means: the date or time by which the provision of the Services will cease as detailed in Schedule 1.

"Consequential Loss" means: loss of use, data, production, profit, revenue, business or anticipated saving, damage to goodwill, reputation or share price, loss of custom or contract, financing costs or increase in costs or any special, indirect or consequential loss or damage or any nature.

"Fee" means: the fee payable to SJA as specified in Schedule 1.

"Force Majeure" means: an act of God, strike, lockout, war (declared or undeclared), act of terrorism, blockade, act of public enemy, disturbance, lightning, fire, earthquake, storm, flood, explosion, governmental restraint, riot, civil commotion, expropriation, prohibition, intervention or embargo, industrial conditions not limited to SJA, and any other occurrence of the kind listed above, which is not reasonably within the control of the affected party.

"GST" means: the Goods and Services Tax as it has that meaning given to that term in the *A New Tax System (Goods and Services) Act 1999 (Cth)*.

"GST law" means

has the meaning given to that terms in the *A New Tax System (Goods and Services) Act 1999 (Cth)*.

"Intellectual Property Rights" means:

all present and future rights conferred by statute, common law or equity in or in relation to copyright, trade-marks, designs, patents, inventions and other results of intellectual activity in any field whether or not registrable, registered or patentable.

"Proposal" means:

the document detailing SJA's offer of Services in relation to the Commission as specified in Schedule 1.

"Services" means:

the services, work or duties to be performed by SJA as specified in Schedule 1.

"SJA Representative" means:

the person nominated in writing from time to time by SJA.

"Term" means:

the period on and from the Commencement Date to and on the Completion Date.

"Variation" means:

as detailed in Clause 12.3 of the Agreement.

Interpretation

2. In this Agreement, headings are only for convenience and do not affect the interpretation and unless context requires otherwise:

- 2.1. "includes" means includes without limitation;
- 2.2. a reference to a gender includes any gender;
- 2.3. a reference to "\$" is to be construed as a reference to Australian currency;
- 2.4. a reference to a party to this Agreement includes that party's successors and permitted assigns;
- 2.5. a reference to legislation includes any amendment to that legislation, any consolidation or replacement of it, and any subordinate legislation made under it;
- 2.6. no rule of construction will apply to a clause to the disadvantage of a party merely because that party put forward the clause or would otherwise benefit from it; and
- 2.7. where the day on or by which something must be done is not a Business Day, that thing must be done on or by the next Business Day.

Entire Agreement

3. This Agreement constitutes the entire agreement between SJA and the Client in connection with the subject matter of this Agreement, Commission and the Services and supersedes any previous agreements and /or other arrangement between the Parties.

Ambiguity or Discrepancy

4. Where any ambiguity or discrepancy exists between these terms and conditions and Schedule 1 or any document referred to in Schedule 1, these terms and conditions take precedence.

Terms of the Agreement

5. This Agreement takes effect on and from the Commencement Date and subject to clauses 28 and 29 continues until the Completion Date.
6. This Agreement applies to all work provided or activities carried out in connection with the Commission or Services, whether before, on or after the Commencement Date.

SJA Obligations

7. In performing the Services, SJA will:
- 7.1. use reasonable skill, care and diligence;
 - 7.2. comply with the reasonable directions of the Client Representative;
 - 7.3. work in accordance with the written directions and information provided by the Client Representative;
 - 7.4. take due care that the Services comply with all relevant laws and statutory requirements.
 - 7.5. communicate with the Client by and through the SJA Representative and other of SJA's personnel, however, only the SJA Representative will have the authority to bind SJA on any matter related to the Services;
 - 7.6. keep confidential information disclosed by the Client or of which SJA becomes aware during the performance of the Services, unless such disclosure is approved or agreed to by the Client;
 - 7.7. where SJA is obligated to do so, obtain and maintain the following policies of insurance with indemnity limits specified in Schedule 1:
 - (a) worker's compensation (as required by statute);
 - (b) public liability; and
 - (c) any other policy of insurance as may be specified in Schedule 1; and
 - 7.8. provision of proof of currency of SJA policies of insurance is limited to the providing certificates of currency only.

Client Obligation

8. The Client agrees to and must:
- 8.1. pay the Fee including any Variation;
 - 8.2. provide to SJA with all necessary information, documents and directions in respect of the Services reasonably necessary for SJA to be able to perform the Services;
 - 8.3. inform SJA of any changes it requires to the Services or any Variations and respond to SJA's requests for information, documents or directions promptly;
 - 8.4. obtain and provide to SJA all necessary approvals, access (including where necessary security passes) and certifications together with any necessary equipment, facilities and inductions to enable SJA to perform the Services;
 - 8.5. communicate with SJA by and through the Client Representative who has the authority to bind the Client in relation to all matters related to the Services;
 - 8.6. comply with the relevant laws and statutory requirements;
 - 8.7. obtain and maintain the policies of insurances (if any) specified in Schedule 1 for the benefit of SJA and provide certificates of currency up on SJA requests;

- 8.8. if this Agreement contains a Completion Date, grant an extension of the Completion Date equivalent to the duration of any delay to the Services caused by any matter or event beyond SJA's reasonable control and pay to SJA any additional Fee and expenses associated with the delay;

- 8.9. keep confidential any information disclosed by SJA or of which the Client becomes aware in respect of the Services, unless such disclosure is approved or agreed to by SJA; and

- 8.10. be jointly and severally bound where the Client consists of more than one person or corporation.

Intellectual Property Rights

9. SJA retains the copyright and all Intellectual Property Rights (unless otherwise agreed herein) in all documents and material SJA produces in the performance of the Services.
10. Any Intellectual Property Rights which are created by SJA in the course of the performance of the Services will vest in SJA.
11. Subject to payment of the Fee, SJA will grant the Client a non-transferable, royalty free licence of any Intellectual Property Rights required in order to use or consume the Services solely for the purpose of the Commission.

Variations

12. The Services and the Fee may be varied as follows:
- 12.1. The Services may be varied by a written direction from the Client to SJA, requiring:
 - (a) an increase or decrease in, or omission of, any of the Services;
 - (b) a change in the quality, timing or sequence of the Services; or
 - (c) additional work or Services,
 provided that any Variation so directed is of a character and extent reasonably contemplated by and capable of being carried out by SJA under this Agreement.
 - 12.2. The Fee may be varied by written notification from SJA to the Client, advising that:
 - (a) an increase has occurred in the costs to SJA of providing the Services due to circumstances outside SJA's control; or
 - (b) a Variation is required to be performed; or
 - (c) in line with SJA's review of its Fee structure as at 30 June and 31 December of each calendar year during the Term of the Services.
 - 12.3. Whenever any of the events set out in Clause 12.1 or 12.2 above (collectively and individually called "Variations") occur, the Fee and the Completion Date, as applicable, must be adjusted as determined as follows:
 - (a) by amount and / or time agreed by the Parties; or
 - (b) if no agreement is reached, by SJA, arriving at a reasonable amount on the basis of the hourly rate for the provision of Services by SJA (as disclosed in the Proposal) and / or time having due regard to the requirements of the Variation.

Invoicing and Payment

13. SJA will:
- 13.1. at the time(s) and frequency set out at Schedule 1, invoice the Client for the Fee, including any Variation, for the performance of the Services;
 - 13.2. charge the Client for disbursements it may incur in the performance of the Services at the rate of actual cost incurred plus a fee of 10% of that cost; and
 - 13.3. provide reasonable records outlining the rates, charges and expenses incurred to support each invoice, if requested by the Client.
14. The Client must pay the SJA invoice issued under clause 13 in full inclusive of Fee, Variation, disbursements and any applicable GST within the period specified in Schedule 1 or if no period is stated within 14 days from the date of the SJA invoice without set off or adjustment.
15. If any portion of the SJA invoice is disputed, the Client must:

- 15.1. notify the SJA Representative in writing the amounts disputed together with reasons in writing 7 days prior to the date for payment of the invoice as specified in Schedule 1;
 - 15.2. pay by the date specified in Schedule 1 all amounts which are not disputed; and
 - 15.3. pay by the date specified in Schedule 1, the full amount of the invoice if the Client has not raised a dispute in accordance with and by the times as set out in clause 15.1.
16. SJA is entitled to charge interest at the rate specified in Schedule 1 on any overdue payments from the due date for payment up to and including the date of payment.

Goods and Services Tax

17. Unless otherwise expressly stated, prices, rates, the Fee or any other sum payable or consideration to be provided under or in accordance with this Agreement are exclusive of GST.
18. If a party makes a taxable supply under or in connection with this Agreement, the other party must pay to the supplier at the same time, and in addition to the GST exclusive consideration, an amount equal to the GST payable on that supply.
19. The supplier must, as a precondition to the payment of GST, give the other party a tax invoice compliant with GST law.
20. If an adjustment event arises in connection with a supply made under this Agreement the supplier must give the other party an adjustment note in accordance with GST law.
21. If this Agreement requires one party to pay for, reimburse or contribute to any expense, loss or outgoing suffered or incurred by the other party, the amount required to be paid, reimbursed or contributed by the first party will be reduced by the amount of input tax credits (if any) to which the other party is entitled in respect of the reimbursable expense.
22. In clauses 17 - 21 inclusive, words and expression which have a defined meaning in GST law have the same meaning as in the GST law.

Limitation of Liability

23. Notwithstanding any other provision in this Agreement but subject always to clauses 24, 25 and 26 inclusive, SJA will have no liability whatsoever to the Client other than for:
 - 23.1. any personal injury, illness or death to any person or loss or damage to any property caused by SJA in the performance of the Services;
 - 23.2. any claim that the Services or the Client's use of the Services infringes the Intellectual Property Rights of another person;
 - 23.3. any third-party action against the Client to the extent directly caused by or contributed to by SJA.
24. SJA's liability to the Client under clause 23 is:
 - 24.1. subject to clauses 25 and 26; and
 - 24.2. will be reduced proportionally to the extent the applicable circumstances in subclauses 23.1, 23.2 and/or 23.3 above are caused by or contributed to by any acts or omissions of the Client, its servants, agents or personnel including breach of this Agreement by the Client, its servants, agents or personnel.
25. To the extent that liability in relation to the matters set out in clauses 23.1, 23.2 and/or 23.3 above is a liability for which indemnity is available to SJA under a policy of insurance held by SJA pursuant to a requirement of this Agreement or a policy of insurance held by the Client for the benefit of SJA then, notwithstanding the provisions of clause 26, the limit of SJA's liability in relation to those matters will be:
 - 25.1. in relation to a liability for which indemnity is available to SJA under a policy of insurance held by SJA pursuant to a requirement of this Agreement, the amount of the net insurance claim proceeds (that is: receipts after deduction for policy excess) actually paid in respect of the subject liability; or
 - 25.2. in relation to a liability for which indemnity is available to SJA under a policy of insurance held by the Client for the benefit of SJA pursuant

to a requirement of this Agreement, the amount of the net insurance claim proceeds (excess payable by the Client) actually paid in respect of the subject liability.

26. Notwithstanding any other provisions of this Agreement, and except to the extent that liability cannot be limited or excluded, the liability of SJA (including its directors and officers, employees and sub-consultants) to the Client for all loss, damage, cost or expenses, whether arising under or in connection with:
 - 26.1. this Agreement;
 - 26.2. the performance, non-performance, mal-performance of this Agreement, breach of this Agreement or anything incidental; or
 - 26.3. any acts or conduct not authorised or required by this Agreement,

and whether by way of indemnity or warranty, by statute, in tort (for negligence or otherwise), in restitution or on any other basis in law or equity is hereby limited and excluded as follows:

- 26.4. SJA (including its directors and officers, employees and sub-consultants) will have no liability whatsoever to the Client for Consequential Loss; and
- 26.5. the total aggregate liability of SJA to the Client is limited to the amount set out in Schedule 1.

This clause 26 will continue to apply notwithstanding any rescission, repudiation or termination of the Agreement by either party for any reason.

27. Save for any liability on the part of SJA pursuant to clauses 23 - 26 inclusive, the Client indemnifies and continues to indemnify SJA against any claim made against SJA by:
 - 27.1. the Client's servants, agents and personnel; and
 - 27.2. any third party,

or in respect of any liability on the part of SJA howsoever arising out of the Agreement, the Commission or the Services.

Suspension and Termination

28. If, contrary to the terms of the Agreement, the Client notifies SJA to suspend the performance of the Services or terminates the Agreement, the Client will be liable for and must indemnify SJA in relation to all loss, damage, cost or expense incurred by SJA arising out of such suspension or termination.
29. SJA, in its sole discretion, may suspend the performance of the Services or terminate the Agreement if the Client:
 - 29.1. has breached any of the terms and conditions of the Agreement and has not remedied such a breach within 7 days of receipt of a written notice from SJA requiring it to remedy that breach;
 - 29.2. becomes insolvent or bankrupt, seeks to compromise with its creditors for amounts owing to them, becomes subject to external administration or in SJA's reasonable opinion is not able to pay its debts as the fall due
- and the Client will be liable for and must indemnify SJA in relation to all loss, damage, cost or expense incurred or reasonably anticipated (including loss of profits) by SJA in suspending or terminating the Agreement, as the case may be.
30. Where the Agreement is terminated or suspended under clause 28 or 29, the Client must immediately pay:
 - 30.1. all outstanding invoices;
 - 30.2. invoices where the time for payment as details in Schedule 1 has not yet passed

and SJA is entitled to and the Client must immediately pay on receipt the SJA invoice issued for all work in progress and disbursements incurred by SJA in the performance of the Services which has not been previously invoiced.

No Solicitation

31. The Client represents and warrants that it will not, without SJA's prior written consent:
- 31.1. employ or approach any SJA personnel ("Employee") with any offer of employment or inducement to seek employment with the Client or associated entity; or
 - 31.2. approach any Employee with any offer to enter a commercial relationship or inducement to enter a commercial relationship with the Client or associated entity; and
 - 31.3. the prohibitions set out in this clause 31 apply during the period of the Employee's employment with SJA and for a period of 6 months following the Completion Date or earlier termination of the Agreement.
32. The Client acknowledges and agrees that it is liable for and must pay SJA the sum of 25% of the Employees then remuneration package with SJA as liquidated damages and not as a penalty should it fail to comply strictly with the requirements of clause 31.

Dispute Resolution

33. If a difference or dispute between the parties arises in connection with the subject matter of this Agreement, then either party must give the other party Notice of dispute adequately identifying and providing details of the dispute.
34. Notwithstanding the existence of a dispute the parties must continue to perform this Agreement.
35. Within 5 Business Days after receiving a Notice of dispute the parties must confer at least once to attempt to resolve the dispute or to agree on methods doing so. At every such conference each party must be represented by a person having authority to agree to such resolution methods or to settle the dispute. All aspects of every such conference except the fact of occurrence will be privileged.
36. If the parties are unable to resolve the dispute or reach agreement on a method to resolve the dispute within 28 days (or such longer period as agreed by the parties) after the Notice of dispute is served, the dispute is hereby submitted to arbitration in accordance with and subject to UNCITRAL Arbitration Rules. The appointing and administering body is the Resolution institute, there will be one arbitrator, the language of the arbitration is English and the place of the arbitration is Sydney.
37. The arbitrator's decisions will be final and binding on the parties.
38. Except to enforce clauses 33 to 37 inclusive, or to seek an urgent interim determination, a party must not commence or maintain an action by way of legal proceedings relating to the dispute until it has been dealt with in accordance with clauses 33 to 37 inclusive.

EXECUTED as an Agreement

Executed by
SJA Construction Services
Pty Limited
in accordance with section
127 of the Corporations Act
2001 (Cth):

)
)
)
) Signature
)
)
) Director / Secretary

Force Majeure

39. If an affected party is wholly or partly unable to carry out any obligation under this Agreement because of Force Majeure, then provided that the affected party:
- 39.1. gives the non-affected party prompt Notice of that Force Majeure event including reasonably full particulars of the event relied on and so far as known the probable extent to which it will be unable to perform or be delayed in performing that obligation; and
 - 39.2. uses all reasonable diligence to remove or remedy that Force Majeure as quickly and as reasonably as possible,

that obligation (except any obligation to make payments under this Agreement) is suspended to the extent that it is affected by the continuation of the Force Majeure.

General

40. The parties may extend the Term of the Services and this Agreement by agreement recorded in writing prior to the Completion Date.
41. SJA must not be taken to have agreed to any amendment or waiver of any provision of the terms and conditions of the Agreement unless so agreed in writing by SJA.
42. The terms and conditions of this Agreement may only be amended if such amendments are agreed to in writing by the parties as set out in an amending agreement signed by the parties.
43. The Agreement must not be assigned by the Client in whole or in part without the prior written consent of SJA.
44. Notices under this Agreement are to be given by and directed to the respective Parties Representatives. In addition to any other method of service permitted by law, notices will be deemed to be properly served if sent to the recipient by email, prepaid mail, personal delivery or facsimile ("Notice").
45. This Agreement is governed by the laws of the jurisdiction set out in Schedule 1. Each party irrevocably submits to the non-exclusive jurisdiction of the courts of the jurisdiction set out at Schedule 1 and courts hearing appeals from them. A party must not object to the jurisdiction of a court merely because the forum is inconvenient.
46. If any term of this Agreement is declared by any judicial or other competent authority to be void, voidable, illegal or otherwise unenforceable, it may be partly or completely severed without affecting the enforceability of the other terms in this Agreement.
47. This Agreement may be executed in a number of counterparts. It comprises all the counterparts, taken together.

Executed by
[insert Client entity
name]
in accordance with section
127 the Corporations Act
2001 (Cth):

)
)
)
) Signature
)
)
) Director

)
)
)
) Signature
)
)
) Director / Secretary

SCHEDULE 1

Clause 1:

Client Representative: [insert name]

Commencement Date: [insert date] (Where no date is given then the date of the Agreement shall apply)

Completion Date: [insert date] (Where no date is given the date or timeframe as set out in the Proposal applies)

Fee: [insert amount or provide details of basis for calculation]

Proposal: [insert details]

Services: [insert details]

SJA Representative: [insert name]

Clause 4: **Other documents forming part of this Agreement:** [insert details] (Where no other documents are specified the default is "no other documents" applies)

Clause 7.7: **SJA Insurances:**

- (a) **Workers Compensation:** In accordance with statutory requirements;
- (b) **Public Liability:** [insert details] (Where no amount is specified, the amount will be AUD10 million)
- (c) **Other** [specify] (Where no details are provided, the default is "no other insurances are required")

Clause 8.7: **Details of policies of Insurance to be obtained and maintained by Client:** [insert]

Clause 13.1: **Interval for rendering invoices:** Fortnightly

Clause 14: **Period for payment of SJA invoices:** Within 14 days on and from the date of the SJA invoice

Clause 16: 2% over the prevailing Reserve Bank of Australia cash rate

Clause 26.5: **Limit of liability:** [insert details]% of the total Fee amounts actually paid by the Client under this Agreement in cleared funds within SJA's bank accounts or SJA may in its sole discretion and in full and final settlement of any liability SJA may have to the Client elect to re-perform that part of the Services that may be defective.
(Where no amount is specified, the limit is 10% or as detailed in the Proposal (which-ever is higher))

Clause 45: **The Law applicable to the Agreement:** [insert details] (Where no jurisdiction is specified, the laws of New South Wales will govern this Agreement)